

Indra Narayan Tripathi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 October 2023 · 2023:AHC:192587-DB · Writ-C No. 32220 of 2023 · **Writ disposed; Clause 6.5 representation to be decided in fifteen days.**

HEADNOTE

The petitioner having already approached the authority under clause 6.5 of the U.P. Electricity Supply Code, 2005, the writ was disposed of with a direction that the representation be decided within fifteen days of presentation of a certified copy of the order.

FACTUAL SUMMARY

Indra Narayan Tripathi filed Writ-C No. 32220 of 2023 against the State of Uttar Pradesh and three others. On 20 September 2023 the Division Bench asked the Electricity Department whether, after the District Consumer Dispute Redressal Forum, Kaushambi order of 25 June 2012, he had been given an electricity connection. Counsel stated he had never been a consumer, and the Court directed that no coercive action be taken until the next listing. The petition came up again on 6 October 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending representation under clause 6.5

HOLDING

The petitioner having already approached the relevant authority under clause 6.5 of the U.P. Electricity Supply Code, 2005, no further order was required. The representation made under clause 6.5 is to be decided within fifteen days from presentation of a certified copy of the order, and the writ petition stands disposed of.

¶ 2

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided The representation already made under clause 6.5 was directed to be decided within fifteen days of presentation of a certified copy; the Court passed no further order on the dispute. ¶ 2

6.5-pending-complaint-writ-remitted Because the petitioner had already approached the authority under clause 6.5, the writ was disposed of without a decision on the connection or the demand. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER AN ELECTRICITY CONNECTION WAS GIVEN AFTER THE DISTRICT CONSUMER DISPUTE REDRESSAL FORUM, KAUSHAMBI ORDER DATED 25.06.2012, AND THE MERITS OF THE CLAUSE 6.5 REPRESENTATION

The Court left the representation to the clause 6.5 authority and did not decide the connection question or the demand.

¶ 1-2